

Form No: HCJD/C-121.
ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT

Crl. Misc. No.5162-Q of 2025

Zeeshan Sajid		VS.	The State and four others.
S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.	

13.01.2026	Mr. Imran Aziz Khan Channar, Advocate for the petitioner. Mr. Mazhar Mahmood Khan, Advocate for the complainant/respondent No.5. Jam Waheed Ahmad Bobra, Deputy District Public Prosecutor with Qaiser, ASI.
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Through this petition filed under section 561-A of the Code of Criminal Procedure, 1898, the petitioner has assailed the order passed by the learned Additional Sessions Judge, Khanpur dated 22.11.2025 whereby the earlier order passed by the learned Magistrate dated 28.10.2025 directing the handing over of the vehicle bearing Registration No.RNS-18-470, was set-aside.

2. The brief facts of the case are that on 22.08.2025, the police of Police Station Zahir Peer, District Rahim Yar Khan while conducting proceedings under section 550 Cr.P.C. retained the vehicle bearing Registration No.RNS-18-470 at the Police Station considering that there was a possibility of breach of peace with regard to the said vehicle and after registering Rapt No.14 dated 05.09.2025, with regard to retaining of vehicle at the Police Station, the police did not proceed

further in the matter and did not produce the said vehicle before the learned Magistrate as was required under the law, however, both the petitioner as well as Shaukat Aziz (respondent No.5), submitted applications under section 516-A of the Cr.P.C. before the learned Magistrate concerned seeking the temporary custody of the said vehicle and the learned Magistrate, vide order dated 28.10.2025, directed that the said vehicle be handed over to the petitioner namely Zeeshan Sajid, however, the respondent No.5 namely Shaukat Aziz successfully challenged the said order by way of filing of a Criminal Revision petition and learned Additional Sessions Judge, vide order dated 22.11.2025, not only set aside the earlier order passed by the learned Magistrate but also ordered that the temporary custody of the vehicle bearing Registration No.RNS-18-470 be handed over to the respondent No.5, hence, this petition.

3. The learned counsel for the petitioner, *inter alia*, contended that the order dated 22.11.2025, passed by the learned Additional Sessions Judge was liable to be set-aside being against the fact and the law; that the earlier order dated 28.10.2025 passed by the learned Magistrate was in accordance with the law and the facts available and therefore, did not merit any interference; that the petitioner being the rightful owner of the vehicle bearing Registration No.RNS-18-470 had a right to its temporary custody.

4. The learned counsel appearing on behalf of the respondent No.5 has submitted that the respondent No.5 was the registered owner

of the vehicle bearing Registration No.RNS-18-470 and therefore, the order passed by the learned Additional Sessions Judge did not suffer from any illegality.

5. The learned Deputy District Public Prosecutor has submitted that the police, after retaining the vehicle bearing Registration No.RNS-18-470 in dispute on 22.08.2025, did not follow the procedure provided under the law and hence, all the proceedings subsequent to that, were untenable.

6. I have heard learned counsel for the petitioner, the learned Deputy District Public Prosecutor, the learned counsel or the respondent No.5 and perused the record with their able assistance.

7. As mentioned above, on 22.08.2025, the police of Police Station Zahir Peer, District Rahim Yar Khan while conducting proceedings under section 550 Cr.P.C. retained the vehicle bearing Registration No.RNS-18-470 at the Police Station considering that there was a possibility of breach of peace with regard to the said vehicle and after registering Rapt No.14 dated 05.09.2025, with regard to retaining of vehicle at the Police Station, the police did not proceed further in the matter and did not produce the said vehicle before the learned Magistrate as was required under the law, however, both the petitioner as well as Shaukat Aziz (respondent No.5), submitted applications under section 516-A of the Cr.P.C. before the learned Magistrate concerned seeking the temporary custody of the said vehicle and the learned Magistrate, vide order dated 28.10.2025, directed that

the said vehicle be handed over to the petitioner namely Zeeshan Sajid, however, the respondent No.5 namely Shaukat Aziz successfully challenged the said order by way of filing of a Criminal Revision petition and learned Additional Sessions Judge, vide order dated 22.11.2025, not only set aside the earlier order passed by the learned Magistrate but also ordered that the temporary custody of the vehicle bearing Registration No.RNS-18-470 be handed over to the respondent No.5. The very foundational question in this case is that whether the proceedings under section 550 of the Cr.P.C. undertaken on 05.09.2025, during which proceedings, the vehicle bearing Registration No.RNS-18-470 was retained at the Police Station, were even legal or otherwise and in this regard, the narrative of Rapt No.14 registered on the same date with regard to retaining of the vehicle in dispute itself denudes that the reason which was provided by the police for retaining the vehicle bearing Registration No.RNS-18-470 at Police Station , which vehicle had been brought to the Police Station by the respondent No.5, was that there was a possibility of breach of peace with regard to the retention of property and in no manner, it was mentioned that the vehicle bearing Registration No.RNS-18-470 was suspected to be stolen or was found in any circumstance which created suspicion of the commission of any offence. Under the provisions of section 550 Cr.P.C. there are only two conditions, which, when they exist, the said provision could be exercised by the police. This very failure of the police to mention any of the said conditions while retaining the vehicle bearing Registration No.RNS-18-470; that it was suspected to be stolen

or was found under the circumstances which brought suspicion of commission of any offence, makes the whole proceedings under section 550 Cr.P.C. undertaken by the police *untenable*. Moreover, subsequent to the retention of the vehicle bearing Registration No.RNS-18-470 under section 550 Cr.P.C., another violation was committed by the police when the police did not produce the said vehicle forthwith before the learned Magistrate concerned as required under section 523 Cr.P.C. and therefore, no order was passed by the learned Magistrate under section 523 Cr.P.C. The provisions of section 516-A Cr.P.C. in the present case were not even applicable for the simple reason that there was no inquiry or trial pending with regard to the said vehicle and therefore, no jurisdiction could have been exercised under section 516-A Cr.P.C., the exercise of which jurisdiction was made by the learned Magistrate on 28.10.2025 as well as by the learned Additional Sessions Judge on 22.11.2025. Both the learned Magistrate and the learned Additional Sessions Judge did not realize this fact that there was no inquiry or trial pending with regard to the vehicle bearing Registration No.RNS-18-470 and the provisions of section 516-A Cr.P.C. were not applicable. In this manner, the whole exercise undertaken by the police with regard to retaining of the vehicle at the Police Station since 05.09.2025 under the provisions of section 550 Cr.P.C. was against the law, rather in violation of the same.

8. In view of the above discussion, the Rapt No.14 dated 05.09.2025 and the proceedings initiated under the same are hereby **quashed**. Now, the question remains as to with whom, the temporary

custody of the property retained at the Police Station shall remain. In this respect, the S.H.O Police Station Zahir Peer, District Rahim Yar Khan is directed to immediately produce the said vehicle before the learned Magistrate concerned and the learned Magistrate shall pass an order under section 523 Cr.P.C. with regard to the said vehicle. At the same time, obviously, the title of the vehicle itself shall be decided by the learned trial court presently seized with the matter with regard to the declaratory suit as filed by the petitioner in respect of the vehicle bearing Registration No.RNS-18-470.

(SADIQ MAHMUD KHURRAM)
JUDGE

*T.M.Alvi/**

Approved for Reporting

Judge